Thank you for the opportunity to make a submission to the Enquiry into the 2025 Federal Election.

Background

Lighter Footprints Inc. ("Lighter Footprints") is a small, volunteer, not for profit incorporated association under the Associations Incorporation Reform Act 2012 (Vic.). We produce and communicate printed and other electoral matter as defined in the S.4AA of the Commonwealth Electoral Act 1918 ("the Act").

Lighter Footprints is not a disclosure entity under the Act.

Our understanding is that pursuant to Item 5 in the table found in S.321 D (5) of the Act Lighter Footprints is required to include the name of the entity and the address of the entity in an authorisation of printed material because Lighter Footprints is an entity that is not a disclosure entity or a natural person. This conclusion is supported by the backgrounder on authorisations produced by the Australian Electoral Commission ("AEC") found here.

The word "address" is defined Part XI, S.123 of the Act as follows:

"**Interpretation**

(1) In this Part, unless the contrary intention appears:

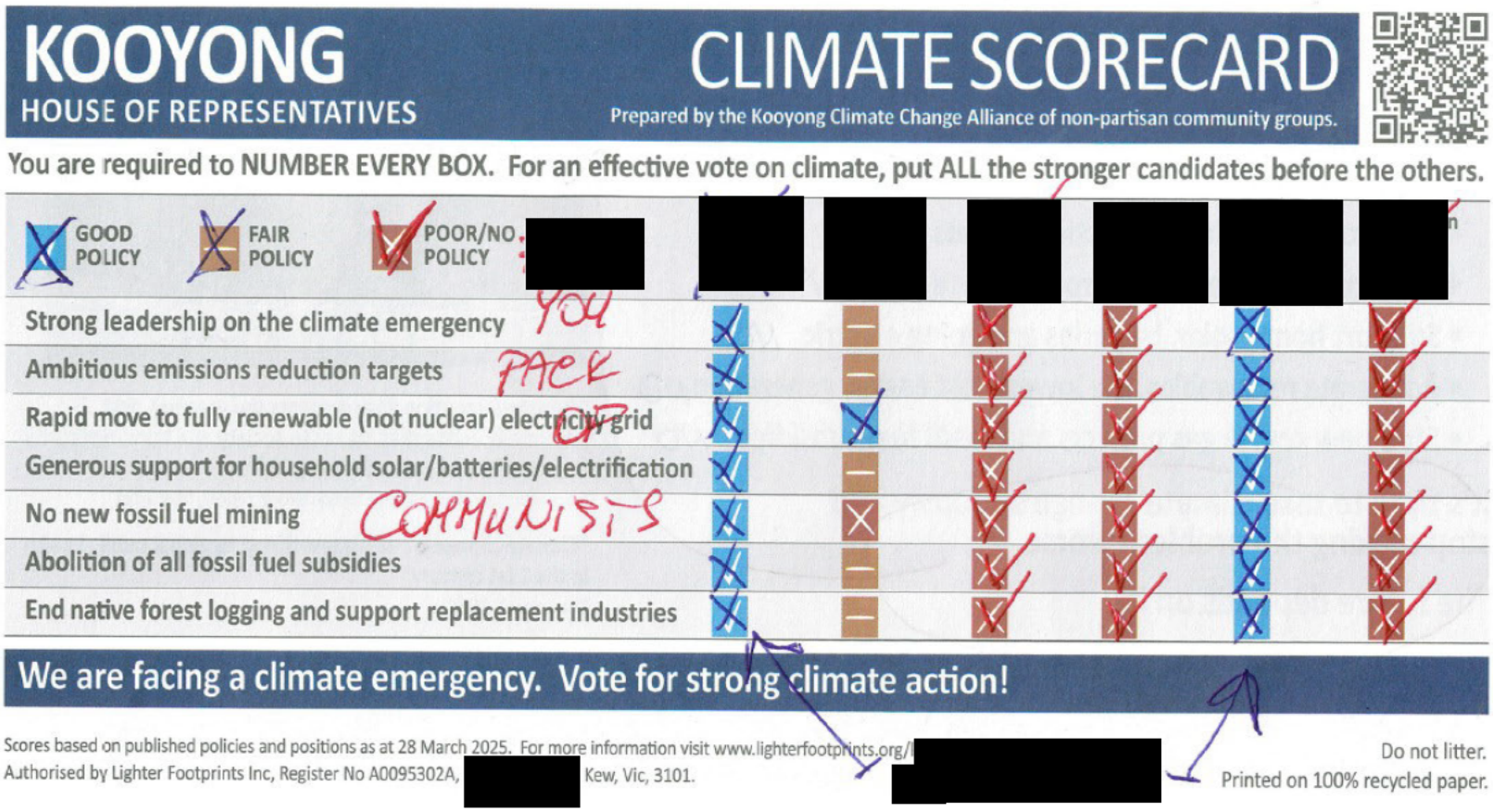
"address" does not include a postal address that consists of a post office box number."

While S321D is not in this part of the Act we can find no other definition of "address" in the Act. Further, the AEC backgrounder referred to above states, "If a street address of a person or entity is required, please note that a PO Box address is not sufficient."

The Problem

We have therefor concluded that Lighter Footprints is required to include a street address in its authorisations of printed electoral matter and that a P.O. Box is not acceptable.

This has proven to be problematic. Lighter Footprints does not have an office or other business address. Lighter Footprints is therefore required to use a residential address in our authorisations. Given the intensity of feeling generated by elections we consider that this places individuals in our organisation at risk. This risk was demonstrated in the 2024 Federal election when on a number of occasions materials were placed in the letterbox at our authorisation address, an example of which is set out below. This is one of our candidate climate scorecards which were printed and letterboxed to the electorate. It was returned to the address contained in the authorisation.



KOOYONG
HOUSE OF REPRESENTATIVES

CLIMATE SCORECARD

Prepared by the Kooyong Climate Change Alliance of non-partisan community groups.

You are required to NUMBER EVERY BOX. For an effective vote on climate, put ALL the stronger candidates before the others.

GOOD POLICY | FAIR POLICY | POOR/NO POLICY

[redacted]

	[redacted]	[redacted]	[redacted]	[redacted]	[redacted]	[redacted]
Strong leadership on the climate emergency	GOOD	FAIR	POOR	POOR	GOOD	POOR
Ambitious emissions reduction targets	GOOD	FAIR	POOR	POOR	GOOD	POOR
Rapid move to fully renewable (not nuclear) electricity grid	GOOD	GOOD	POOR	POOR	GOOD	POOR
Generous support for household solar/batteries/electrification	GOOD	FAIR	POOR	POOR	GOOD	POOR
No new fossil fuel mining	GOOD	POOR	POOR	POOR	GOOD	POOR
Abolition of all fossil fuel subsidies	GOOD	FAIR	POOR	POOR	GOOD	POOR
End native forest logging and support replacement industries	GOOD	FAIR	POOR	POOR	GOOD	POOR

YOU PACK OF COMMUNISTS

We are facing a climate emergency. Vote for strong climate action!

Scores based on published policies and positions as at 28 March 2025. For more information visit www.lighterfootprints.org/[redacted]
Authorised by Lighter Footprints Inc, Register No A0095302A, [redacted] Kew, Vic, 3101.
Do not litter.
Printed on 100% recycled paper.

This same problem applies to natural persons who are not disclosure entities under Item 7 in the table found in S.321 D (5) of the Act. This may also be an issue for disclosure entities, but we assume they are more likely to have a business office address.

Other Jurisdictions

We note that the Victorian Local Government Act 2020 S.287 (5) provides that for authorisation purposes "address" means a street address **or a post office box address**.

We further note that under the Victorian Electoral Act 2002 S.3 provides that "address does not include a post office box."

Suggested change to the Act

Lighter Footprints asks that this enquiry consider recommending that the Act be amended to allow for the use of a P.O. Box as an address, at least for entities and individuals who are not disclosure entities, and require that the P.O. Box be maintained for a minimum period of time post-election.

We contend that this would afford appropriate protection to individuals in our association and others like it, as well as individuals who produce printed material and are not disclosure entities,

while also allowing members of the public to communicate effectively with the entity or person who produced the electoral matter.

The exposure required by the Act in its present form is a disincentive to individuals and organisations participating in the democratic process.

Lynn Frankes

Deputy Convenor

Lighter Footprints Inc.

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